

Use this checklist to assess your organization's language access and digital accessibility compliance posture. Each item represents a legal requirement or best practice under federal law. Check off items completed; flag gaps for remediation. Prepared by Taika Translations LLC — ATA Certified · VOSB · GSA & NASPO Contracted.

Title VI Civil Rights Act & EO 13166 — Language Access Title VI · 42 U.S.C. § 2000d · EO 13166

- Written Language Access Plan (LAP) adopted and updated within last 3 years

Required for all recipients of federal financial assistance

- Four-factor analysis completed: number of LEP persons, frequency of contact, nature/importance of program, available resources

- Vital documents translated into languages spoken by 5%+ or 1,000+ LEP persons served

"Vital" = applications, notices of rights, complaint forms, consent forms

- Translated documents reviewed by qualified translator (not machine translation alone) for accuracy

- Oral interpretation available free of charge to LEP individuals upon request

Cannot require LEP persons to provide their own interpreter

- Staff trained to work with interpreters and to identify when language assistance is needed

- Bilingual staff competency tested before using for interpretation duties

- Signage in lobby/intake area in top languages indicating free interpretation availability

- Complaint procedure available in accessible formats and translated as needed

- LAP reviewed after significant changes to programs or LEP population served

Section 508 Rehabilitation Act — Electronic & Information Technology 29 U.S.C. §

794d · Revised 508 Standards (2018)

- Section 508 conformance scope documented: ICT covered under procurement and development

- VPATs (Voluntary Product Accessibility Templates) obtained for all procured software/hardware

Use VPAT 2.4 Rev WCAG format

- Agency website tested for WCAG 2.0 Level AA conformance at minimum

- All PDFs published on website are tagged, readable by screen readers, and have correct reading order

- PDF forms are fillable, have proper tab order, and include accessible labels

- All images have meaningful alt text; decorative images marked as artifacts

- Videos posted publicly include synchronized closed captions (99%+ accuracy)

- Audio-only content has transcripts available

- Color contrast ratio: 4.5:1 minimum for normal text, 3:1 for large text

- Keyboard navigation functional throughout website without mouse

- No content flashes more than 3 times per second (seizure risk)

- Skip navigation links present for screen reader users
- VPAT/ACR published on website for agency-developed ICT
- Section 508 language included in all ICT procurement solicitations and contracts

ADA Title II — State & Local Government Accessibility ADA Title II · 28 C.F.R. Part 35 · DOJ

Final Rule (2024)

- ADA Title II WCAG 2.1 Level AA compliance deadline noted: April 24, 2026 (pop. 50k+) or April 26, 2027 (smaller)

DOJ Final Rule effective June 24, 2024

- Full website audit against WCAG 2.1 AA completed or scheduled
- Mobile website/app included in accessibility audit scope
- Grievance procedure for ADA complaints established and published

Required for agencies with 50+ employees

- ADA Coordinator designated and contact info publicly posted
- Self-evaluation of programs for ADA compliance completed
- Transition plan developed for structural barriers (physical and digital)
- Auxiliary aids and services provided for people with disabilities upon request

Includes sign language interpreters, captioning, accessible formats

- Effective communication policy documented and staff trained

WCAG 2.1 / 2.2 Level AA — Web Content Accessibility W3C WCAG 2.1 (June 2018) · WCAG 2.2

(Oct 2023)

- Perceivable: All non-text content has text alternatives
- Perceivable: Captions provided for all prerecorded audio in video
- Perceivable: Audio descriptions or media alternative for video
- Perceivable: Content can be presented without loss of information when styles disabled
- Operable: All functionality available from keyboard
- Operable: No keyboard traps that prevent navigation
- Operable: Users can pause, stop, or hide auto-playing content
- Operable: Minimum 2.5 x 2.5 CSS pixels for pointer targets (WCAG 2.2)
- Understandable: Page language set in HTML; language of passages identified
- Understandable: Navigation consistent across pages
- Understandable: Form inputs have visible, descriptive labels
- Understandable: Error messages identify which field has error and how to fix
- Robust: Markup validates without parsing errors
- Robust: Name, role, value available for all UI components
- Focus not obscured by sticky headers/footers (WCAG 2.2 — 2.4.11)
- Dragging movements have single-pointer alternative (WCAG 2.2 — 2.5.7)

HIPAA — Health Information Privacy & Security 45 C.F.R. Parts 160 & 164

- Business Associate Agreement (BAA) executed with all language service providers handling PHI
- Interpreters trained on HIPAA minimum necessary standard
- Translated documents containing PHI transmitted via secure, encrypted channels
- Patient authorization obtained before using interpreter for purposes beyond treatment/payment/operations
- Language access services documented in medical record
- Multilingual Notice of Privacy Practices available in patient's language upon request
- Interpreter notes and recordings treated as PHI and disposed of per retention policy

FERPA & IDEA — Education Privacy & Special Education 20 U.S.C. § 1232g · 34 C.F.R. Part 300

- Parent/guardian notices (including IEP meeting notices) translated into parent's primary language
IDEA requirement — native language communication
- IEP meetings conducted in parent's native language with qualified interpreter when needed
- Annual FERPA notices translated for non-English-speaking families
- Student education records protected and not shared with interpreters beyond necessary scope
- Interpreters used for IEP meetings signed confidentiality agreements
- Consent forms for special education evaluations available in parent's language
- Procedural safeguards notice translated into parent's native language
Required under IDEA § 615(d)
- Multilingual parent communication plan documented in district LEP policy

Video Captioning & Media Accessibility ADA · Section 508 · CVAA · FCC Rules

- All new public-facing videos include synchronized closed captions before publishing
- Caption accuracy meets 99%+ standard (FCC benchmark for broadcast)
- Captions are verbatim, not paraphrased, for legal/compliance content
- Caption files available in accessible formats (SRT, VTT, SCC)
- Legacy video archive captioning plan developed with timeline and budget
- Live event captioning (CART) procured for public meetings and hearings
- Caption quality QA process in place — human review of auto-generated captions
- Audio descriptions available for videos where visual content conveys meaning not in audio

Need help closing these gaps? Taika Translations LLC provides ATA-certified translation, professional interpretation (OPI/VRI/in-person), Section 508 PDF remediation, WCAG audits, and video captioning — all under GSA Schedule and NASPO ValuePoint contracts.

